

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cheyanne Ralph	Team: Squad #16	CCRB Case #: 201700305	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 01/11/2017 1:36 PM	Location of Incident: Bay 23rd Street and Benson Avenue	18 Mo. SOL 7/11/2018	Precinct: 62		
Date/Time CV Reported Thu, 01/12/2017 1:59 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 01/12/2017 1:59 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Stephen Ennis	20112	954772	062 PCT
2. SGT Daniel McKeefrey	1585	947243	062 PCT
3. POM Joseph Campbell	07101	955781	062 PCT
4. An officer			062 PCT
5. Officers			062 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Daniel McKeefrey	Abuse: Sergeant Daniel McKeefrey stopped § 87(2)(b) and § 87(2)(b)	A . Substantiated
B . POM Stephen Ennis	Abuse: Police Officer Stephen Ennis stopped § 87(2)(b) and § 87(2)(b)	B . Substantiated
C . POM Joseph Campbell	Abuse: Police Officer Joseph Campbell stopped § 87(2)(b) and § 87(2)(b)	C . Substantiated
D . Officers	Abuse: Officers searched § 87(2)(b)	D . Unsubstantiated
E . POM Joseph Campbell	Abuse: Police Officer Joseph Campbell searched § 87(2)(b)	E . Unsubstantiated
F . An officer	Abuse: An officer searched § 87(2)(b)	F . Officer(s) Unidentified
§ 87(4-b) § 87(2)(g)		

Case Summary

On January 12, 2017, § 87(2)(b) filed this complaint via telephone with the Civilian Complaint Review Board (CCRB) regarding an incident involving his friend, § 87(2)(b)

On January 11, 2017, at approximately 1:36 p.m., § 87(2)(b) and § 87(2)(b) were walking in the vicinity of Bay 23rd Street and Benson Avenue, in Brooklyn, when the following allegations resulted: Sgt. Daniel McKeefrey, PO Stephen Ennis, and PO Joseph Campbell of the 62nd Precinct stopped § 87(2)(b) and § 87(2)(b) (Allegation A, B, and C). Officers searched § 87(2)(b) (Allegation D). PO Joseph Campbell searched § 87(2)(b) (Allegation E). An officer searched § 87(2)(b) (Allegation F). § 87(2)(g), § 87(4-b)

§ 87(2)(b) was issued summons #§ 87(2)(b) for § 87(2)(a) 160.50 (Board Review 01).

§ 87(2)(g)

There was no video footage of the incident.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- This case was eligible for mediation and was rejected by § 87(2)(b) § 87(2)(b)
- As of May 3, 2017, no Notice of Claim had been filed in regard to the incident by either § 87(2)(b) or § 87(2)(b) (Board Review 02).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first case filed by or involving § 87(2)(b) (Board Review 05), and the first involving § 87(2)(b) (Board Review 06).
- PO Stephen Ennis has been a member of service for three years and this is his first CCRB complaint.
- PO Joseph Campbell has been a member of service for three years and has had two allegations pleaded against him. None of these allegations were substantiated § 87(2)(g).

- Sgt. Daniel McKeefrey has been a member of service for eight years and has had six allegations pleaded against him. None of these allegations were substantiated § 87(2)(g) [REDACTED].

Potential Issues

On January 18, 2017, § 87(2)(b) [REDACTED] provided a telephone statement (Board Review 07) and scheduled his interview for January 27, 2017. § 87(2)(b) [REDACTED] did not appear for this appointment or call ahead to cancel or reschedule. After a total of three phone calls and two letters mailed to his address, on February 10, 2017, the undersigned investigator spoke to § 87(2)(b) [REDACTED] who stated that he was no longer interested in pursuing the complaint § 87(2)(b) [REDACTED].

Findings and Recommendations

Explanation of Subject Officer Identification

During his interview with the CCRB, § 87(2)(b) [REDACTED] (Board Review 08) stated that after PO Ennis, PO Campbell, and Sgt. McKeefrey stopped him and § 87(2)(b) [REDACTED] two officers approached § 87(2)(b) [REDACTED] and began placing their hands inside his pockets. Although § 87(2)(b) [REDACTED] was able to describe the officers, he could not provide any distinguishing characteristics and provided similar descriptions for each officer on scene. He also could not associate the descriptions with the names he provided. During his interview, § 87(2)(b) [REDACTED] provided the following officer names as the subjects of his complaint: PO Ennis, PO Campbell, and Sgt. McKeefrey. § 87(2)(b) [REDACTED] also provided the names of the officers during his telephone statement, but was unable to substantively describe them or the actions they took. Sgt. McKeefrey, PO Ennis, and PO Campbell admitted in their testimony to the CCRB (Board Review 09-11) that they approached § 87(2)(b) [REDACTED] who was walking with § 87(2)(b) [REDACTED] but denied having any physical interaction with § 87(2)(b) [REDACTED] § 87(2)(g) [REDACTED].

When § 87(2)(b) [REDACTED] observed officers entering § 87(2)(b) [REDACTED] s pants pockets, he told an officer he identified as PO Ennis, and described as a 5'6" tall white male with black hair that he did not consent to any search. PO Ennis ignored § 87(2)(b) [REDACTED] and placed his hands inside the pockets of his green jacket. In § 87(2)(b) [REDACTED] s left exterior pocket, he had an oral syringe, his keys, and his lighter; in his right exterior jacket pocket, he had an orange prescription bottle. PO Campbell (Board Review 11) stated that once PO Ennis began issuing § 87(2)(b) [REDACTED] a summons for an open container of alcohol, he observed what appeared to be the top of a syringe sticking out of § 87(2)(b) [REDACTED] s front jacket pocket. PO Campbell in response reached into § 87(2)(b) [REDACTED] s pocket and removed the syringe. § 87(2)(g) [REDACTED].

§ 87(2)(b) [REDACTED] stated that as PO Campbell searched him, a second officer approached and placed his hands inside his rear pants pocket. As discussed above, § 87(2)(b) [REDACTED] was able to describe the officers but could not associate them with the names he provided and provided similar descriptions for each officer. § 87(2)(g) [REDACTED].

Allegation A –Abuse of Authority: Police Officer Stephen Ennis stopped § 87(2)(b) and

§ 87(2)(b)

Allegation B–Abuse of Authority: Police Officer Joseph Campbell stopped § 87(2)(b) and

§ 87(2)(b)

Allegation C–Abuse of Authority: Sergeant Daniel McKeefrey stopped § 87(2)(b) and § 87(2)(b)

§ 87(2)(g)

It is undisputed that § 87(2)(b) and § 87(2)(b) were stopped by PO Ennis, PO Campbell, and Sgt. McKeefrey.

In his sworn statement to the CCRB, § 87(2)(b) (Board Review 08) testified that on the date in question he was smoking a Cheyenne cigar as he walked with his friend, § 87(2)(b). When § 87(2)(b) and § 87(2)(b) got to the corner of Bay 23rd Street and Benson Avenue, PO Ennis, PO Campbell, and Sgt. McKeefrey exited from an unmarked black sedan. PO Ennis said, “Come over here. What is that?” § 87(2)(b) replied, “It’s a cigar. You can go ahead and open it up.” PO Ennis took the cigar and opened it with his hands. § 87(2)(b) then showed PO Ennis the cigar package which he retrieved from his front left pants pocket.

The telephone statement of § 87(2)(b) (Board Review 07) corroborated with § 87(2)(b)’s statement in that § 87(2)(b) smoked a cigar as they walked on Benson Avenue and officers exited their vehicle in response, and asked § 87(2)(b) to show them his cigar.

Sgt. McKeefrey was first interviewed at the CCRB on March 7, 2017 (Board Review 09), and testified that as he, PO Campbell, and PO Ennis drove on Benson Avenue, PO Campbell, and PO Ennis informed him that they observed § 87(2)(b) walking with § 87(2)(b) with a container in his hands. Sgt. McKeefrey stated to the CCRB that he also observed § 87(2)(b) walking with a container in his hands, and described it as a small medicine pill bottle. Sgt. McKeefrey could not recall if the container was clear or not but stated that there were liquid contents stored inside. He did not know what was inside the medicine pill bottle at this time. He also could not recall if § 87(2)(b) was doing any additional actions besides holding the pill bottle in his hands, or if § 87(2)(b) had put the medicine pill bottle to his mouth when he initially observed him.

Sgt. McKeefrey was re-interviewed at the CCRB on May 10, 2017 (Board Review 16), and stated that he was not sure what crime he suspected § 87(2)(b) of committing when he initially observed him because he could not remember the incident. He also could not remember what he thought was inside the bottle, and stated that he was simply following PO Ennis’ and PO Campbell’s lead. Sgt. McKeefrey stated that is not illegal to be in possession of a medicine pill bottle, and it is not illegal to use a pill bottle to consume liquid contents. He could not remember if there were any additional factors that led to his decision to stop § 87(2)(b) or if § 87(2)(b) was free to go when he approached him. In his previous CCRB interview, Sgt. McKeefrey indicated that an officer took the medicine pill bottle from § 87(2)(b) and smelled it. He could not remember the officer’s purpose of doing so, and stated that at this point § 87(2)(b) was suspected of consuming alcohol. Sgt. McKeefrey determined that § 87(2)(b) was consuming alcohol because he smelled the odor of

alcohol. He could not remember if there was any police action taken in regards to § 87(2)(b) but stated that § 87(2)(b) was free to go.

In his first CCRB statement on February 15, 2017, PO Ennis (Board Review 10) said that he was seated inside his vehicle when he observed § 87(2)(b) walking with an opened pill bottle in his right hand on the public sidewalk with § 87(2)(b). The fat, clear, medicine pill bottle did not have any labels attached to it, but PO Ennis could see that it had yellow liquid contents inside of it. He could not recall how tall the pill bottle was, and could not recall seeing § 87(2)(b) drink from the pill bottle when he observed him. PO Ennis sat in the front passenger seat of the vehicle, when he observed § 87(2)(b) and could not recall how PO Campbell and Sgt. McKeefrey were positioned inside the vehicle at that time. PO Ennis, PO Campbell, and Sgt. McKeefrey then exited their vehicle. PO Ennis could not recall if Sgt. McKeefrey or PO Campbell confirmed that they observed the pill bottle in § 87(2)(b)'s hands before they exited their vehicle. PO Ennis asked, "What is that?" § 87(2)(b) replied, "It's just Sunny D and vodka." PO Ennis later said that § 87(2)(b) made him smell the contents inside the pill bottle. PO Ennis could not recall if § 87(2)(b) was smoking when he approached him, and did not recall observing him doing anything else besides holding the pill bottle in his hand before he approached him.

PO Ennis was re-interviewed on May 11, 2017 (Board Review 17). He stated that when he observed § 87(2)(b) he was inside of his vehicle which was moving at the time, and could not recall how fast the vehicle was traveling. When PO Ennis observed § 87(2)(b) he suspected § 87(2)(b) of having an open container of alcohol which is a violation and not a crime, but did not know what alcohol he thought was inside the pill bottle. Besides § 87(2)(b) walking with the open container in his hands, there were no additional factors that led PO Ennis to stop § 87(2)(b) and he was free to go once the summons was issued to him. PO Ennis stated to the CCRB that he has never issued a summons for consuming alcohol out of a pill bottle. PO Ennis could not recall any police action being taken in regards to § 87(2)(b) and stated that he had no interaction with § 87(2)(b).

In his first CCRB statement on February 14, 2017, PO Campbell (Board Review 11) stated that when he observed § 87(2)(b) § 87(2)(b) was in the process of putting what appeared to be a white medicine pill bottle to his mouth. PO Campbell was seated in the driver's seat of his vehicle, approximately 20 feet away on Benson Avenue when he observed § 87(2)(b) and § 87(2)(b) walking. PO Ennis, who was seated in the front passenger of the vehicle, and Sgt. McKeefrey, who sat in the rear passenger seat both confirmed that they observed § 87(2)(b) put the pill bottle against his mouth, and informed PO Campbell that § 87(2)(b) was drinking. PO Campbell later stated, "We did not know if it was narcotics or if he was drinking." PO Campbell could not describe the size, shape, or color of the pill bottle he observed § 87(2)(b) holding. He also could not recall whether § 87(2)(b) was smoking a cigar when he initially observed him. PO Campbell, PO Ennis, and Sgt. McKeefrey observed § 87(2)(b) and § 87(2)(b) from inside their vehicle for approximately three minutes before they exited. Once officers exited their vehicle, an officer approached § 87(2)(b) and asked him what he had in his hands. § 87(2)(b) replied, "Vodka and orange juice" PO Campbell could not recall which officer asked § 87(2)(b) what he was drinking. § 87(2)(b) was then asked for his identification. He could not recall which officer asked § 87(2)(b) for his ID or if § 87(2)(b) was asked for his identification.

PO Campbell was re-interviewed on May 16, 2017 (Board Review 18). He stated that when he observed § 87(2)(b) the pill bottle was open and § 87(2)(b) was drinking from it. Based on these observations § 87(2)(b) was suspected of having an open container of alcohol in public, which is a violation. PO Campbell stated that when he exited his vehicle and approached § 87(2)(b) he intended to ask § 87(2)(b) what was inside the container. PO Campbell did not know what was inside the pill bottle; he just knew that § 87(2)(b) was drinking from it. He also did not know what type of alcohol was inside the bottle. He stated to the CCRB that he did not know why he suspected § 87(2)(b) of having alcohol inside the pill bottle, but based on his training and experience, medicine bottles contain alcohol. He later said that based on his experience as a police officer and as a human being, he knew that medicine bottles contain alcohol. PO Campbell stated that it is not illegal to be in possession of a medicine bottle, or use a pill bottle to consume liquids.

§ 87(2)(g)

[REDACTED]

According to the legal precedent established in People v. DeBour, 40 N.Y.2d 210, officers are permitted to stop an individual when they have a reasonable suspicion to believe that he is committing a crime (Board Review 12). However, a crime is defined as a felony or misdemeanor. New York City Admin Code 10-125(2)(b) prohibits the consumption of alcohol and being in possession of an open container of alcohol on streets or in public places (Board Review 13). This prohibition only constitutes a violation.

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

In DeBour, the court also established that the innocuous behavior- behavior susceptible of innocent as well as culpable interaction- alone will not generate reasonable suspicion.

§ 87(2)(g)

[REDACTED]

Requests for any Stop, Question, and Frisk reports prepared for § 87(2)(b) or § 87(2)(b) on January 11, 2017, yielded negative results (Board Review 14).

§ 87(2)(g)

it is recommended that **Allegations A, B, and C** is closed as **Substantiated**.

Allegation D—Abuse of Authority: Officers searched § 87(2)(b)

§ 87(2)(b) provided a brief telephone statement to the allegation (Board Review 07) which he alleged a search by officers; however, § 87(2)(b) never provided a sworn statement to the agency. § 87(2)(b) stated that when PO Ennis, PO Campbell, and Sgt. McKeefrey exited their vehicle, they asked § 87(2)(b) to show them his cigarette. § 87(2)(b) in response showed the officers his cigarette, proving to them that it was not marijuana. Officers in response began searching § 87(2)(b) and § 87(2)(b) without consent. § 87(2)(b) acknowledged that he did not object to being searched at any time during the encounter, and stated that, "They didn't really search me that hard. They just went into my pockets. They really searched my friend." Officers placed their hands inside § 87(2)(b)'s pants pockets, his jacket pockets, and the pockets of his sweatshirt, and removed everything that was stored inside, including a blunt wrap, his phone, and his ID. As discussed above, § 87(2)(b) was uncooperative with the investigation when he expressed his desire to not pursue with the complaint.

The sworn statement obtained by the investigation provided by § 87(2)(b) alleged a search of § 87(2)(b). However, § 87(2)(b) could not recall which pockets the officers placed their hands inside of because "he was too focused on himself," and stood approximately 10 feet away from § 87(2)(b) when the officers began placing their hands in his pockets.

PO Ennis, PO Campbell, and Sgt. McKeefrey all denied conducting a search of § 87(2)(b).

§ 87(2)(g)

it is recommended that **Allegation D** is closed as **Unsubstantiated**.

Allegation E—Abuse of Authority: Police Officer Joseph Campbell searched § 87(2)(b)

Allegation F—Abuse of Authority: An officer searched § 87(2)(b)

§ 87(2)(b) (Board Review 08) alleged that when he observed officers placing their hands inside § 87(2)(b)'s pockets, he said, "I don't consent to any search. I don't want to be searched." PO Campbell ignored § 87(2)(b) and proceeded to enter the pockets of his green jacket. § 87(2)(b) said, "Why am I being searched?" PO Campbell replied, "Under the suspicion of marijuana." § 87(2)(b) stated to the CCRB that there should have been no further suspicion being that he showed the officers the cigar package, proving that he was not smoking marijuana. § 87(2)(b) had § 87(2)(b) had an oral syringe without a needle in his left exterior jacket pocket, and his keys and a lighter in

his left exterior jacket pocket. In his interior jacket pocket, § 87(2)(b) had a few napkins. As PO Campbell entered § 87(2)(b)'s right exterior jacket pocket, he found an orange prescription medication jar. The medication jar did not have any labels affixed to it. Inside the jar, was a half of a shot of Vodka and orange juice. PO Campbell opened the jar and smelled what was inside. § 87(2)(b) said, "I had the cap on it anyway." PO Campbell replied, "You are not allowed to have it as long as the seal is open." PO Campbell (Board Review 11) then entered § 87(2)(b)'s left back pocket of his pants, where he had his phone and his wallet inside, and removed his wallet and looked inside of it.

PO Campbell then entered the outermost compartment of § 87(2)(b)'s black, NorthFace book bag. Inside this compartment, § 87(2)(b) had a notebook, a few pens, and a pencil case with a British flag. PO Campbell removed the metal pencil case and looked inside. He did not remove anything else from § 87(2)(b)'s book bag, and did not enter any additional compartments. § 87(2)(b) stated to the CCRB that PO Campbell searched every jacket and pants pockets, as well as his book bag for approximately 5 minutes. During this time, an officer approached § 87(2)(b) and entered both of his rear pant pockets. The officer did not place his hands inside any additional pockets. PO Ennis then said, "Can I have your ID?" PO Ennis took § 87(2)(b)'s ID and walked towards the black sedan. He then began writing § 87(2)(b) a summons on top of the hood of the vehicle.

§ 87(2)(b) (Board Review 07) testified that once § 87(2)(b) showed the officers his cigarette, proving that there was not marijuana inside, officers began searching § 87(2)(b) without consent. § 87(2)(b) stated that § 87(2)(b) objected to being searched, and when he did, he requested the names and badge numbers of the officers approximately three times; each time, his request was ignored.

PO Campbell stated that once officers exited their vehicle, an officer approached § 87(2)(b) and asked him what he had in his hands. § 87(2)(b) replied, "Vodka and orange juice" PO Campbell could not recall which officer asked § 87(2)(b) what he was drinking. § 87(2)(b) was then asked for his identification. He could not recall which officer asked § 87(2)(b) for his identification. PO Ennis immediately began issuing § 87(2)(b) a summons for an open container of alcohol. He could not recall if PO Ennis returned to the vehicle to do so. During this time, PO Campbell observed what appeared to be the top of a syringe sticking out of § 87(2)(b)'s front jacket pocket. He could not describe § 87(2)(b)'s jacket, nor could he recall which pocket he observed the syringe in, or how far out the syringe was sticking out of § 87(2)(b)'s pocket. PO Campbell stated to the CCRB that he knew what he saw was the top of syringe because, "Based on my experience as a police officer, I know what a syringe looks like." PO Campbell asked § 87(2)(b) what it was, and § 87(2)(b) in response attempted to reach into his pocket to remove the syringe. PO Campbell said, "I grabbed it before he could grab it, because I was in fear of my safety because I know what a syringe could do to you." PO Campbell pulled the syringe out of § 87(2)(b)'s pocket. PO Campbell did not think § 87(2)(b) was in possession of any weapons when he did this, and § 87(2)(b) did not object to PO Campbell entering his pockets when he did this. When PO Campbell

removed the syringe from § 87(2)(b)'s pocket, he noticed that the syringe did not have any residue inside. He described it as a syringe with a white top and a metal tip. PO Campbell stated to the CCRB that he did not have any additional reason to enter § 87(2)(b)'s pocket beside to remove the syringe, and did not enter any of § 87(2)(b)'s pants pockets, and could not recall if PO Ennis entered § 87(2)(b)'s pants or jacket pockets. PO Campbell denied seeing any officer frisk § 87(2)(b) during this encounter.

PO Campbell could not see what Sgt. McKeefrey and PO Ennis were doing at this time, because they were behind him. He stated, "I was focused on the defendant because he had a syringe in his pocket." When PO Ennis finished writing the summons, PO Campbell returned the syringe to § 87(2)(b). He stated to the CCRB that he returned the syringe because, "there was nothing for me to do with it. He said he used the syringe for gardening." PO Campbell stated "That an individual can legally have a syringe in the state of New York as long as it does not have any residue in it."

PO Ennis (Board Review 10) stated that once § 87(2)(b) provided him with his ID, he returned to his vehicle to get the summons out of his bag. He could not recall if he was seated inside his vehicle or standing outside of his vehicle as he wrote the summons. He also could not recall if he saw PO Campbell or Sgt. McKeefrey interacting with § 87(2)(b) during this time because he had his head down as he wrote the summons. PO Ennis could not recall seeing a syringe on § 87(2)(b) and could not recall whether PO Campbell or Sgt. McKeefrey informed him that they observed a syringe on § 87(2)(b). PO Ennis could not recall entering or seeing any officer entering § 87(2)(b)'s pockets. PO Ennis denied hearing § 87(2)(b) object to any officers entering his jacket or his pant pockets. PO Ennis could not recall conducting any frisk on § 87(2)(b). Once PO Ennis was finished writing the summons, he approached § 87(2)(b) and handed him a summons for § 87(2)(b).

Sgt. McKeefrey (Board Review 09) could not recall seeing any officer enter § 87(2)(b)'s pocket nor could he recall any discussion between § 87(2)(b) and any officer in regards to a syringe. He also could not recall if a syringe was recovered from § 87(2)(b) by officers. Sgt. McKeefrey could not recall entering § 87(2)(b)'s jacket pockets or seeing any officer conducting a search of any kind.

The sworn statement obtained by the investigation provided by § 87(2)(b) did not contain a refusal to provide name and shield allegation.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
It is therefore recommended that **Allegation E** is closed as **Unsubstantiated**. § 87(2)(g)
§ 87(2)(g)
Therefore it is recommended that **Allegation F** is closed as **Officer(s) Unidentified**.

§ 87(2)(g), § 87(4-b)

[Redacted text block containing multiple lines of blacked-out information]

Squad: 16

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date